

ARTICLE 4.

In order to facilitate the enforcement of the provisions of this Convention, every shipmaster shall be required to keep a register of all persons under the age of sixteen years employed on board his vessel, or a list of them in the articles of agreement, and of the dates of their births.

CHAPTER 66.

An Act to amend the enactments relative to Compensation for Criminal Injuries in Ireland.

[23rd December 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where a decree has been made against a county council whether before or after the passing of this Act under any of the enactments relative to compensation for criminal injuries, the amount recovered shall be a debt due by the council and payable by them on demand, and it shall be the duty of the treasurer of the council on demand to pay the amount out of the moneys under his control as such treasurer, and if those are insufficient, out of the first moneys coming to his hands as such treasurer whether such moneys represent sums raised for compensation for criminal injuries or sums raised for or applicable to any other purpose.

Payment of
criminal
injuries com-
pensation.

(2) If it appears to the Lord Lieutenant, on representations made by the council and approved by the Local Government Board, that, having regard to the rateable value of the area off which the amount recovered is to be levied and the circumstances affecting that area, the amount could not be raised by means of a rate in one year without imposing an excessive burden on the ratepayers, the Lord Lieutenant may by order direct that the amount, instead of being payable on demand, shall, as regards the whole or any part thereof specified in the order, be payable by instalments of such sums, payable at such times, not being later in any case than five years from the date aforesaid, as may be specified in the order, and the order may contain such incidental, supplemental, or consequential provisions as appear to the Lord Lieutenant to be necessary or proper, including provisions for immediate payment of the whole amount due in the event of default in payment of any instalments.

(3) Subsection (4) of section one of the Criminal Injuries (Ireland) Act, 1919, is hereby repealed.

9 & 10 Geo. 5.
c. 14.

Deduction
of criminal
injuries com-
pensation
from grants
payable to
local authori-
ties.

2.—(1) Where any such decree has been made against a council whether before or after the passing of this Act, the Lord Lieutenant, if, on the application of the person by whom the decree was recovered or of any other person entitled to receive the amount recovered, he is satisfied that the amount recovered or any part thereof remains unpaid and that immediate payment cannot otherwise be obtained, may make an order directing that the amount or part thereof shall be deducted from the sums which but for the order would be payable to the council out of:

- (a) the Local Taxation (Ireland) Account;
- (b) any fund administered by any Government department;
or
- (c) any parliamentary grant,

and the deductions shall be made and the sums deducted be applied in payment of the said amount or part thereof accordingly, and, as respects deductions from any parliamentary grant, sums deducted and applied in accordance with the order shall be deemed to have been applied for the purposes for which the grant was voted notwithstanding anything to the contrary in any Act.

In this section the expression "Government department" includes the Commissioners of Public Works in Ireland, the Irish Insurance Commissioners, the Congested Districts Board for Ireland, the Registrar of Petty Sessions Clerks, and any other public department, and any Minister of the Crown acting as the head of a Government department.

(2) The powers given by the last preceding subsection shall, as respects the Local Taxation (Ireland) Account, be without prejudice to the guarantee fund under the Purchase of Land (Ireland) Act, 1891, or any right of deduction given by subsection (2) of section eighty of the Local Government (Ireland) Act, 1898.

(3) An order of the Lord Lieutenant under this section may contain such incidental, supplemental, and consequential provisions as appear to the Lord Lieutenant to be necessary or proper, and in particular—

- (a) may prescribe the manner in which the deductions and payments thereby directed are to be made and applied;
- (b) may direct the deduction to be made from sums payable to a council in the current or any subsequent local financial year until the amount recovered has been discharged; and
- (c) may specify the particular payments out of the Local Taxation (Ireland) Account, fund or parliamentary grant from which the deductions are to be made,

54 & 55 Vict.
c. 48.

61 & 62 Vict.
c. 37.

and, if necessary, the order in which the account, grant, fund, or payments are to be liable to deduction, and provide for the final determination, in such manner as the Lord Lieutenant thinks proper, of any questions arising in connection with the order,

and every such order shall have effect as if enacted in this Act, but may be revoked or altered by a subsequent order.

3. Any decree made against a county council whether before or after the passing of this Act for compensation for criminal injuries may, irrespective of the amount recovered, be removed to the High Court on certiorari under section nine of the Civil Bill Courts Procedure Amendment Act (Ireland), 1864, and any rates payable by any ratepayer to the council may, as well as any other debts due to the council, be attached to answer the amount recovered by the decree when so removed, together with the costs of or incidental to the proceedings in the High Court, including the costs of the removal.

Attachment
of rates to
answer
decrees for
compensation
for criminal
injuries.
27 & 28 Vict.
c. 99.

4. Where a decree is made against a county council after the passing of this Act for compensation for criminal injuries, the amount recovered (excluding therefrom any sums recovered for costs or expenses) shall carry interest at the rate of five per cent. per annum from the date of the service of the preliminary notice of application upon the secretary of the county council where the compensation is awarded in respect of a murder or criminal injuries to the person, and from the date of the decision of the county court in other cases, and payment of such interest may be enforced in like manner as if it were part of the amount recovered. The foregoing provisions of this section shall apply also in the case of decrees made before the passing of this Act for compensation in respect of criminal injuries, whether to person or property, committed or inflicted at any time after the first day of January nineteen hundred and seventeen, but only as respects so much of the amount recovered as shall have remained unpaid at the time of the passing of this Act.

Interest on
compensation
awarded

5.—(1) Notwithstanding anything in subsection (6) of section fifty-one of the Local Government (Ireland) Act, 1898, or in section two of the Local Government (Ireland) Act, 1900, or any other enactment, a rate may be made at any time for raising money for the payment of compensation for criminal injuries, and the amount thereof shall not be reckoned for the purposes of any enactment imposing a limitation upon the amount of the rate that may be raised.

Rates and
borrowing.
61 & 62 Vict.
c. 37.
63 & 64 Vict.
c. 63.

(2) A county council may, with the approval of the Local Government Board, borrow such sums, upon such terms and conditions as may be sanctioned by the Board, for the purpose of raising money for the payment of compensation for criminal

injuries or to make good deficiencies caused by payments made by the treasurer under this Act or by the exercise of any powers or remedies given by this Act, and money so borrowed shall not be reckoned as part of the debt of the county council for the purposes of any enactment imposing a limit upon the amount borrowed by the council.

(3) The obligation to raise by means of rates the amount recovered by a decree for such compensation off the area or areas specified in the decree shall not be affected by the discharge of the amount or any part thereof by means of deductions or in any other manner authorised by this Act.

Extension of
times, &c.
6 & 7 Will. 4.
c. 116.

6.—(1) Section one hundred and thirty-seven of the Grand Jury (Ireland) Act, 1836, which relates to the giving in of examinations and the making of recognisances, shall cease to have effect.

61 & 62 Vict.
c. 37.

(2) The powers of the court or judge under any rules of court made in pursuance of subsection (7) of section five of the Local Government (Ireland) Act, 1898, shall include power to extend or vary the time prescribed by any statute or statutory rules for making an application for compensation for criminal injuries or for serving any notice or for doing any other act, or taking any proceedings in relation to the application, in any case where it appears to the court or judge that such extension or variation is just and reasonable for any cause whatsoever.

(3) Where an application is made in respect of a murder or other criminal injuries (whether to person or property) committed or inflicted at any time after the first day of January nineteen hundred and seventeen, and a former application made by the same person in respect of the same injuries was refused by the county court or judge of assize at any time prior to the passing of this Act, the application may be reheard and determined, notwithstanding such refusal, if the court or judge is satisfied—

(a) that the former application would not have been refused had this Act been then in operation; or

(b) that the refusal was due to the applicant's having abandoned the application by reason of threats, intimidation, or apprehension of violence;

and that it is just and reasonable that the powers given by this section should be exercised for the purpose of enabling the application to be reheard and determined.

Amendment
of 9 & 10
Geo. 5. c. 14.

7. The Criminal Injuries (Ireland) Act, 1919, shall be amended as follows:—

(a) Paragraph (b) of subsection (1) of section one shall apply, and be deemed always to have applied, to the classes of persons mentioned in paragraph (a) of the

said subsection in like manner as it applies to other persons, and shall have effect and be deemed always to have had effect as if the words "or assembly" were added at the end thereof :

- (b) Subsection (3) of section one shall be extended so as to apply in the case of compensation awarded in respect of criminal injuries to property as well as in the case of compensation awarded in respect of murder or criminal injuries to the person :
- (c) Subsection (5) of section one, which relates to the power to make rules of court, shall apply for the purposes of this Act in like manner as it applies for the purposes of the said section.

8. If the Lord Chancellor is satisfied that the judge of any county court is unable, owing to the number of applications for compensation for criminal injuries which are pending in his court to transact the business of the court with proper dispatch, the Lord Chancellor may appoint the judge of the county court of any other county or county borough or a practising barrister of not less than ten years' standing to act as additional judge of the county court for such time as the Lord Chancellor may direct, and subject to any conditions which he may impose.

Appointment of a person to act temporarily as additional judge of a county court.

Any additional judge so appointed shall have all the powers, jurisdiction, and privileges and may perform any of the duties of the judge of the first-mentioned county court, whether under the enactments relative to compensation for criminal injuries or otherwise.

9. Every power given by this Act for the enforcement of payment of compensation in respect of criminal injuries shall be in addition to, and not in derogation of, any other powers or rights for the purpose, whether given by this or any other Act or existing at law or by custom or otherwise:

Powers of Act cumulative.

Provided that, where the amount recovered is payable by instalments pursuant to an order of the Lord Lieutenant under this Act, such powers and remedies shall be exerciseable subject to the terms of the order.

10. This Act may be cited as the Criminal Injuries (Ireland) Act, 1920, and shall apply to Ireland only.

Short title and extent.